

25NNCV07384 25NNCV07384

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Case Number: 25NNCV07384 Hearing Date: August 27, 2026 Dept: V

Superior Court of California

County of Los Angeles – NORTHEAST District

Department

V

JANE WP1 ROE,

Plaintiff,

vs.

VILLAGE CHRISTAIN SCHOOL,

Defendants.

Case

No.:

25NNCV07384

Hearing

Date:

August

27, 2026

Time:

8:30 a.m.

[Tentative]

Order RE: DEFENDANT'S DEMURRER

MOVING PARTY: Defendant Village Christian
School

RESPONDING PARTY: Plaintiff Jane WP1 Roe

The court
considered the moving papers, opposition and reply filed in connection with
this motion.

BACKGROUND

On October 17, 2025, Plaintiff Jane
WP1 Roe filed this childhood sexual abuse action against Defendant Village
Christian School.

On March 3, 2026, Plaintiff filed the operative first amended
complaint (FAC) against Defendant, alleging causes of action for: (1)
negligence/negligent failure to protect, (2) negligent supervision/failure to
warn, train, or educate, (3) negligent hiring/retention/supervision; (4)
intentional infliction of emotional distress, and (5) sexual battery.

Plaintiff alleges that she was sexually abused by a volleyball coach
when she was a student at Defendant's school between 2010 and 2011.

Plaintiff alleges that the volleyball coach would bring Plaintiff to
his mother's house and sexually abuse her there. She alleges that the coach's
mother was the principal at Defendant's school. Plaintiff further alleges that
the coach groomed Plaintiff to believe they were in a healthy and consensual
relationship.

Plaintiff alleges that when the coach formally disclosed the
"relationship" with to Defendant's Principal just days after Plaintiff turned
18 (in September after she graduated that spring), the Principal responded with

something to the effect of, “I’m not surprised” and “I saw this coming,” a clear indication that she was aware of the relationship while Plaintiff was a minor student and failed to take action.

Plaintiff also alleges that it was common knowledge amongst the volleyball team, the other assistant coaches, and the parents that the coach and Plaintiff were in a “relationship.”

Finally, Plaintiff alleges, during Plaintiff’s abuse, at least one minor reported to head volleyball coach Bill Schnobrich that several of the assistant coaches were inappropriate with another minor player. In response, Schnobrich scolded her and warned her not to make such comments.

Plaintiff alleges that Defendant ratified the coach’s conduct by failing to take any remedial, disciplinary or corrective action despite having knowledge of the coach’s proclivities.

On April 8, 2026, Defendant filed this demurrer to the FAC.

On August 14, 2026, Plaintiff filed an opposition.

On August 20, 2026, Defendant filed a reply.

LEGAL STANDARD

As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.*, (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (*E-Fab, Inc. v. Accountants, Inc. Servs.*, (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (*Id.*) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (*Hahn v. Mirda*, (2007) 147 Cal.App.4th 740, 747.)

Before

filing a demurrer, the demurring party is required to meet and confer with the party who filed the pleading demurred to for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (Code of Civ. Proc. § 430.41.)

DISCUSSION

Defendant demurs to the fifth cause of action for sexual battery, arguing that it fails to state sufficient facts for sexual battery by ratification against Defendant.

“An employer may be liable for an employee’s act where the employer either authorized the tortious act or subsequently ratified an originally unauthorized tort.” (Baptist v. Robinson (2006) 143 Cal.App.4th 151, 169-170.) “The failure to discharge an employee who has committed misconduct may be evidence of ratification.” (Ibid.) “The theory of ratification generally applied where an employer fails to investigate or respond to charges that an employee committed an intentional tort, such as assault or battery.” (Ibid.) Whether an employer ratified an employee’s conduct is generally a factual question. (Ibid.)

Defendant argues that Plaintiff relies upon the alleged comments that the principal, who is the coach’s mother, made in response to her son telling her that he and Plaintiff were in a relationship. Defendant argues that comments that Plaintiff contends amount to ratification were

made three months after Plaintiff graduated high school. Defendant argues the FAC does

not identify what conduct the principal saw that prompted her to allegedly say “I saw this

coming.” Thus, Defendant argues that the FAC does not contain facts showing what the principal knew or suspected, or when she knew or suspected it.

Defendant also argues that the FAC also relies on a loose claim that head volleyball coach Bill Schnobrich failed to

conduct an investigation after a student purportedly claimed that

assistant volleyball coaches were

inappropriate with a player. There are no facts stating what

was allegedly reported by the volleyball

player, including which assistant coaches were

allegedly being inappropriate, to whom

they were being inappropriate, and the alleged. inappropriate conduct.

Plaintiff

cites C.R. v. Tenet Healthcare Corp. (2009) 169 Cal.App.4th 1094,

1110-1111 where allegations that managing agents were aware of sexual abuse but refused to take action were sufficient.

Plaintiff

argues she has adequately pled the principal and head coach knew or had an

opportunity to learn of the abuse. Plaintiff alleges that the assistant coach

was playful, flirtatious, and overly friendly with Plaintiff (FAC ¶ 11) and

showed Plaintiff special attention at volleyball practices and games. (FAC ¶

12.) He complimented her appearance, asked her personal questions about her

family life, and engaged in open and obvious gratuitous touching during practices

beyond what would be reasonably expected of a sports coach. (FAC ¶ 12.) Perpetrator

treated Plaintiff as a “favorite” and gave her more personalized attention than

the other players to the extent other teammates began to comment on the

favoritism and gossiped that something was

“going on” between

Plaintiff and Perpetrator. (FAC ¶ 14.) Perpetrator spent an unusual amount of time

providing her with one-on-one instruction during practices. (FAC ¶ 14.) He made

sexual jokes and innuendoes openly during volleyball practices in front of

other Village Christian coaches. (FAC ¶ 14.) He drove Plaintiff to and from

volleyball practices and games in his own car. (FAC ¶ 15, 16.) He sexually

abused Plaintiff in the Village Christian staff parking lot. (FAC ¶ 16.) He sexually

abused Plaintiff at Principal Levoe’s house. (FAC ¶¶ 17, 18.)

Plaintiff

argues that the Perpetrator’s conduct was so open and notorious that it was

common knowledge amongst players and the other assistant volleyball coaches

that Plaintiff and Perpetrator were in a “relationship” and Perpetrator was engaging sexually with her. (FAC ¶¶ 25, 26, 55-59.) Even other parents suspected Plaintiff and Perpetrator were intimate with one another (FAC ¶ 27.)

One

player on Plaintiff’s team reported to Schnobrich that several of the assistant

coaches were

inappropriate with another minor player and in response, Schnobrich scolded her and warned her not to make such comments. (FAC ¶ 28.)

Plaintiff

argues that the FAC likewise clearly articulates facts showing Perpetrator’s misconduct occurred openly during volleyball practices and games under Coach Schnobrich’s direct supervision. Players knew (FAC ¶¶ 11, 12, 14, 25, 26, 28, 55, 59); assistant coaches knew (FAC ¶¶ 25, 46, 60, 62); and even parents suspected untoward behavior between Perpetrator and Plaintiff. (FAC ¶ 27.) Thus, Plaintiff argues that there is more than a reasonable inference that Coach Schnobrich was aware of Perpetrator’s conduct towards Plaintiff, and further supported by a player’s direct report to him of misconduct by assistant coaches which he disregarded. (FAC ¶ 28.) Plaintiff argues that Schnobrich had knowledge of, or at a minimum sufficient knowledge warranting an investigation, which he failed to perform.

“As a general rule, in order that a ratification of an unauthorized act of an agent may be valid and binding it is essential that the principal have full knowledge at the time of the ratification of all material facts and circumstances relative to the unauthorized act or transaction unless the principal is willfully ignorant or purposely refrains from seeking information.” (Gallagher v. California Pac. Title & Tr. Co. (1936) 13 Cal. App. 2d 482, 493.)

Here, the comment “I saw this coming” by the principal may suggest that she saw a relationship coming between the then adult Plaintiff and the coach, not necessarily a sexual battery. It does not show she knew a sexual battery occurred. Further, she must have full knowledge at the time of the ratification. It is unclear whether she had full knowledge at the time of the sexual battery of what had occurred. Merely stating she saw it coming could mean she may have surmised something was going on, but this is not the same as full knowledge. Further, the case cited by Plaintiff, C.R. v.

Tenet Healthcare Corp., *supra*, 169 Cal. App. 4th 1094, is distinguishable because the employer's managing agents and supervisors were alleged to have known specifically that the employee was sexually abusing patients, not merely in a potential relationship. Here, there are no facts alleged to show either the head coach or the principal were specifically made aware of the sexual abuse.

As

to the allegations that the other students, parents, and assistant coaches knew, and thus, the principal and head coach should have known, the general rule is that actual knowledge of all material facts is required for valid ratification. Constructive notice alone is generally not sufficient. (See *Gallagher*, *supra*, 13 Cal. App. 2d at 493.) Thus, the fact that other students, parents or assistant coaches knew is not enough to show full knowledge on the principal and head coach.

Further,

while Plaintiff alleges that other students complained of assistant coaches to the head coach, the FAC does not allege if the assistant coach at issue was the subject of such complaints.

Plaintiff

cites to *Murillo v. Rite Stuff Foods, Inc.* (1998) 65 Cal.App.4th 83 and *McChristian v. Popkins* (1946) 75 Cal.App.2d 249, which held that an employer's retention of an employee after learning of misconduct – or having an opportunity to learn of it – may support an inference of ratification, particularly where the employer fails to investigate, repudiate, discipline, or discharge the wrongdoer. But in both cases, the employers knew of the conduct at issue. (*Murillo*, *supra*, 65 Cal. App. 4th at 839; *McChristian*, *supra*, 75 Cal.App.2d at 256.) In *McChristian*, the manager witnessed the conduct at issue and another manager spoke with the Plaintiff afterward and thus knew of the conduct as well. (*Id.*) In *Murillo*, the conduct at issue was reported to the manager twice. (*Murillo*, *supra*, 65 Cal. App. 4th at 839.) In contrast, there plaintiff does not allege facts that either the principal or head coach were specifically aware or made aware of any misconduct.

Plaintiff

also argues that a principal does not avoid ratification by remaining deliberately ignorant. “[W]here ignorance of the facts arises from the

principal's own failure to investigate and the circumstances are such as to put a reasonable man upon inquiry, he may be held to have ratified despite lack of full knowledge." (Vollandri v. Hlobil (1959) 170 Cal.App.2d 656, 659.)

Plaintiff argues that Coach Schnobrich was in the best position to observe Perpetrator's open and obvious conduct during practices and games and had every opportunity to investigate but did nothing. But Plaintiff identifies conduct such as providing individualized attention at practice and games and flirting – which does not necessarily give rise to inquiry notice of sexual abuse. Plaintiff also alleges that the other parents suspected and the other players knew, but the FAC does not allege that the principal or the head coach were made aware of these suspicions or other facts such that they may willfully ignore them. The FAC does not even allege the principal or head coach saw the flirting or individualized attention. In Vollandri v. Hlobil, supra, 170 Cal.App.2d 656, the defendant received letters from the plaintiff that provided clear and unequivocal notice of the misconduct; thus, he could not later claim that he did not have full knowledge of the transaction, as that would be willful ignorance. (Id., at 659.) There is no clear and unequivocal notice alleged here in order for there to be willful ignorance.

CONCLUSION

Based on the foregoing, the court SUSTAINS Defendant's demurrer with 20 days leave to amend.

Defendant is ordered to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 27, 2026

Sarah
J. Heidel

Judge
of the Superior Court